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|    |                                                                                                                                                                       | Based on Plaintiffs' evidence, Defendants have not established that Plaintiffs reside out of the state. The motion is denied.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 11 | <b>Kaiser v. Compass California, III, INC.</b><br><br>2026-01579378<br><br>Motion to for leave to file 2 <sup>nd</sup> Amended complaint                              | Plaintiffs David Kaiser and Rachel Powell's motion to file a Second Amended Complaint is GRANTED.<br><br>"The court may . . . in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading . . ." (Code Civ. Proc. § 473, subd. (a)(1).) "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc. § 576.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." ( <i>Morgan v. Sup.Ct.</i> (1959) 172 Cal.App.2d 527, 530.)<br><br>Plaintiffs seek to file a SAC to refine and plead with greater specificity the allegations against defendants.<br><br>Defendants will not suffer any prejudice as a result of the amendment because neither defendant has been served with the summons and complaint, and neither defendant has appeared in the action.<br><br>Plaintiffs are to electronically file and serve the proposed Second Amended Complaint within 7 days.<br><br>Plaintiffs to give notice. |
| 12 | <b>First Technology Federal Credit Union v. 333 City Blvd, LLC</b><br><br>2025-01462538<br><br>Motion to be relieved as counsel of record for Def 333 City Blvd., LLC | The motion of attorney Kimberly Arouh of Buchanan Ingersoll & Rooney LLP to withdraw as attorney of record for Defendant 333 City Blvd LLC is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.)<br><br>Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.<br><br>Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 13 | <b>Tsirtsis v. Pacific Hospital Long Beach</b><br><br><b>2021-0134325</b>                                                                                             | Defendant Dr. Ian Armstrong's Motion for Summary Judgment/Adjudication is CONTINUED to 8/31/26.<br><br>On 7/6/26, the Court continued the hearing to provide for Judge De La Cruz to rule on Plaintiff's Motion to Withdraw Deemed Admissions, which was set for hearing on 7/22/26. However, on 7/20/26, Judge De La Cruz continued the                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

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|  | <p>Motion for Summary Judgment and or Adjudication</p> | <p>hearing on that motion to 8/26/26 because the parties' Joint Letter Brief filed on 7/13/26 exceeded the page limit.</p> <p>Trial is set for 9/21/26. There is good cause to continue the hearing to a date less than 30 days prior to the trial date so that the discovery issue may be resolved. (Code Civ. Proc. § 437c(a)(3).) However, the Court may rule on the merits of the motion on 8/31/26 even if the discovery issue remains unresolved.</p> |
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